

**IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(Civil Appellate Jurisdiction)**

**First Miscellaneous Appeal No. 138 of 2021  
with  
(Civil Rule No. 179 (FM) of 2020)**

**In the matter of:**

Alhaj Md. Moshaddek Ali and another  
... Appellants-petitioners

-Versus-

Mrs. Habiba Sultana Zaidi and others  
...Respondents-opposite parties

Mr. A.S.M. Khalequzzaman , Advocate  
...For the appellants-petitioners

Mr. Mohammad Abdullah Al-Masud with  
Mr. Mohammad Serajul Haque with  
Mr. Khaja Tanvir Ahmed, Advocate  
....For the respondent-opposite party no. 1

**Heard and Judgment on .04.11.2024**

**Present:**

Mr. Justice Md. Mozibur Rahman Miah

And

Mr. Justice Md. Bashir Ullah

**Md. Mozibur Rahman Miah, J.**

Since the point of law and facts so figured in the appeal as well as rule are intertwined they have been heard together and are being disposed of by this common judgment.

At the instance of the defendant nos. 3 and 4 of Title Suit No. 377 of 2006 and those of the petitioners in Miscellaneous Case No. 19 of 2014 filed under Order 9 Rule 13 of the Code of Civil Procedure, this appeal has been preferred against the judgment and order dated 22.10.2019 passed by the learned Joint District Judge, 1<sup>st</sup> Court, Dhaka

dismissing the case finding the petitioners of the case absent fixed for submitting report by the Advocate commissioner.

In a nutshell, the case of the petitioners in short is that the present respondent no. 1 as plaintiff filed the aforesaid Title Suit for declaration of title in the suit land and further declaration to the effect that the deed of *heba* dated 25.02.1975 executed in favour of the defendant no. 1 showing the plaintiff as donor of the said deed and kept with the defendant no. 2 is inoperative, collusive and not binding upon the said plaintiff together with other two prayers. In the said suit, the defendant no. 2 Agrani Bank here in the respondent no. 3 entered appearance and contested the suit and ultimately the learned joint District judge 1<sup>st</sup> court, Dhaka by his judgment and decree dated 19.08.2013 decreed the suit against the defendant no. 2 and *exparte* against other defendants that is, present appellants-petitioners who were defendant nos. 3-4 in the suit.

Feeling aggrieved by and dissatisfied with the said judgment and decree the defendant no. 3 and 4 as petitioners then filed a Miscellaneous Case under Order 9 Rule 13 of the Code of Civil Procedure for setting aside the said judgment and decree passed *exparte*. In course of the said Miscellaneous Case, the petitioners on 19.06.2016 filed an application under Order 26 Rule 1 read with section 151 of the Code of Civil Procedure for taking deposition of the petitioner's witness on commission and the learned judge vide order being no. 91 dated 16.02.2017 allowed the prayer for taking evidence on commission fixing 08.03.2017 for depositing commission's fee. However, on subsequent occasions the matter was fixed for submitting commission report by the

Advocate commissioner but ultimately vide impugned judgment and order dated 22.10.2019, the learned judge dismissed the Miscellaneous case holding that, in spite of going to the house of the petitioner's witness (shortly PW) to take evidence none opened the door of the house of the PW while the commissioner visited there resulting in failed to perform his commission work and filed report to that effect and the learned judge assigning the said reason then vide impugned order dismissed the Miscellaneous Case.

It is at that stage the defendant nos. 3 and 4 of Title Suit No. 377 of 2006 vis-a-vis the petitioners in Miscellaneous Case No. 19 of 2014 as appellants then preferred the instant appeal. After preferring the appeal, the self-same appellants as petitioners filed an application for stay as well as injunction and this court vide order dated 12.03.2020 issued rule and stayed operation of the exparte judgment and decree dated 19.08.2013 passed in Title Suit No. 377 of 2006 so far as relates to the petitioners which gave rise to instant Civil Rule No. 179(FM) of 2020.

Mr. A.S.M. Khalequzzaman, the learned counsel appearing for the appellants-petitioners upon taking us to the impugned judgment and order at the very outset submits that, under no circumstances a Miscellaneous case can be dismissed on account of not filing commission report by the Advocate commissioner even though the Miscellaneous case was not fixed for hearing on that very date. In that regard, the learned counsel by taking us to the provision of section 141 and that of Order 9 Rule 8 of the Code of Civil Procedure contends that

as per the said provision the procedure followed in regard to a suit is also applicable in Miscellaneous proceeding and in light of the said provision, a Miscellaneous Case filed under Order 9 Rule 8 of the Code of Civil procedure can only be dismissed if the same is fixed for final hearing which is equally applicable in the Miscellaneous Case filed under Order 9 Rule 13 of the Code and then adds further that on the date of passing the impugned order, since it has not been fixed for hearing of the Miscellaneous Case rather it was fixed for filing commission report, so the Miscellaneous Case cannot be dismissed as a whole. Basing on that sole legal ground, the learned counsel finally prays for allowing the appeal and to make the rule absolute.

On the contrary, Mr. Mohammad Abdullah Al-Masud, the learned counsel appearing for the plaintiff-respondent-opposite party no. 1, opposes the said contention placed by the learned counsel for the appellants-petitioners and submits that, there has been no illegality in the impugned judgment and order as the previous orders passed in the Miscellaneous Case show that, the petitioners remained absent in the case deliberately and finally prays for passing necessary order as this court may deem fit and proper.

We have considered the submission so placed by the learned counsel for the appellants-petitioners and that of the respondents-opposite party no. 1 and also perused the impugned judgment and order and all other document appended with the application for stay on which rule was issued and an order of stay passed. On going through the impugned judgment and order, we find that on that very date, it was

fixed for submitting commission report upon taking testimony of the petitioner's witness no. 1. On that very date, admittedly it was not fixed for hearing of the Miscellaneous Case yet the learned judge in a very slipshod and cursory manner without applying his judicial mind has just dismissed the Miscellaneous case which he cannot do given the express provision of law as submitted by the learned counsel for the appellants. Because, if the commissioner fails to record the deposition of witness he could file the report stating on that and in that event, the learned judge could fix the next date for hearing of the Miscellaneous case. But under no circumstances can he dismissed the Miscellaneous case since it was not fixed for hearing of the Miscellaneous case rather fixed for submitting commissioner's report. All in all, we don't find any substance to sustain the impugned order.

Accordingly, the appeal is allowed however without any order as to costs.

The impugned judgment and order dated 22.10.2019 passed by the learned Joint District Judge, 1<sup>st</sup> Court, Dhaka in Miscellaneous Case No. 19 of 2014 is thus set aside.

Since the appeal is allowed, the connected rule being Civil Rule No. 179 (FM) of 2020\_ is hereby made absolute.

The operation of the judgment and decree passed ex parte in Title Suit No. 377 of 2006 dated 19.08.2013 will continue till disposal of the Miscellaneous Case No. 19 of 2014.

However, the learned Joint District Judge, 1<sup>st</sup> court, Dhaka is directed to dispose of the said Miscellaneous case as expeditiously as

possible preferably within a period of 02(three) months from the date of receipt of the copy of this order.

Let a copy of this order be communicated to the court concerned forthwith.

**Md. Bashir Ullah, J.**

I agree.